

Pankaj Rajput vs Shrimati Aditi Singh on 18 May, 2026

Author: Saurabh Lavania

Bench: Saurabh Lavania

HIGH COURT OF JUDICATURE AT ALLAHABAD, LUCKNOW BENCH

Neutral Citation No. - 2026:AHC-LK0:35743

HIGH COURT OF JUDICATURE AT ALLAHABAD

LUCKNOW

MATTERS UNDER ARTICLE 227 No. - 2682 of 2026

Pankaj Rajput

.....Petitioner(s)

Versus

Shrimati Aditi Singh

.....Respondent(s)

Counsel for Petitioner(s)

:

Rakesh Kumar Agarwal, Anupriya Agarwal, Saksham Agarwal

Counsel for Respondent(s)

:

Court No. - 7

HON'BLE SAURABH LAVANIA, J.

Heard.

In view of the order proposed, issuance of notice to opposite party no. 2 is hereby dispensed with.

The petitioner has sought the following main relief:-

"1. To issue a direction to Learned Additional Principal Judge-IX Family Court Lucknow to decide the application for interim relief filed by petitioner in Case no. 528 of 2025 Pankaj Rajput versus Aditi Singh under Section-25 of Guardians and Wards Act, 1890, pending before Additional Principal Judge IX, Family Court, Lucknow, as expeditiously as possible preferably within a period of 1 month (the certified copy of order-sheet is contained in ANNEXURE-1)."

For the purposes of reliefs sought in the present writ petition, learned Counsel for the petitioner submitted that the petitioner and respondent solemnized marriage on 14.12.2015 according to Hindu Rites and Rituals. Out of the wedlock, the petitioner and respondent were blessed with a baby boy on 07.05.2018. He further submitted that due to temperamental differences their marriage has broken down and now it is not possible for the petitioner and respondent to live as husband and wife.

Considering the estranged relationship, the petitioner filed a suit under Section 13 of Hindu Marriage Act, 1955 for granting the decree of divorce and prior to this case a case under Section 125 Cr.P.C. pending as Case No.364/2022 was filed by the wife of the petitioner. Thereafter, the petitioner filed a case bearing No.528 of 2025 (Pankaj Rajput Vs. Aditi Singh) under the Guardians and Wards Act along with an application for interim relief, which is pending consideration.

He also submitted that in these circumstances, the indulgence of this Court is required.

Considering the entirety of the case, without entering into the merits of the case, the Additional Principal Judge-IX, Family Court, Lucknow is directed to decide the application for interim relief filed by petitioner in Case No.528 of 2025 (Pankaj Rajput Vs. Aditi Singh) under Section 25 of Guardians and Wards Act, 1890, after providing proper opportunity of hearing to the concerned parties, with expedition.

The petition is disposed of finally.

(Saurabh Lavania,J.) May 18, 2026 ML/-